

Jay Narayan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 November 2016 · Writ-C No. 52272 of 2016 · Writ-C No. 52272 of 2016 · **Representation treated as Clause 5.5 bill-correction application; recovery stayed four weeks**

HEADNOTE

A writ against a recovery citation on a disputed electricity bill of Rs 6,32,754 was disposed of by directing the Executive Engineer to treat the pending representation as an application for correction of the bill under Clause 5.5 of the Electricity Supply Code, 2005 and decide it by a reasoned speaking order within two weeks; recovery to remain in abeyance for four weeks. The correctness of the bill was not decided.

FACTUAL SUMMARY

Jay Narayan petitioned the Allahabad High Court against a demand of Rs 6,32,754. He contended that the electricity bill was incorrect because earlier payments had not been adjusted, and that a representation seeking that adjustment was still pending. While the representation remained undecided, a recovery citation issued for the same amount. The writ sought relief against that recovery. Counsel for the petitioner and for respondent nos. 2 and 3 (the licensee) were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.5

bill correction on pending representation

HOLDING

Where a consumer disputes a bill on the ground that previous payments were not adjusted and a representation is pending when a recovery citation issues, the Executive Engineer is to treat that representation as an application for correction of the bill under Clause 5.5 and decide it by a reasoned speaking order within two weeks of production of a certified copy; recovery remains in abeyance for four weeks. ¶ 1

FLAG Clause 5.5 cited for bill-correction of unadjusted payments; recorded as stated, not recast.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF RS 6,32,754 WAS INCORRECT FOR WANT OF ADJUSTMENT OF PREVIOUS PAYMENTS

Left to the Executive Engineer on the representation treated as a Clause 5.5 application. ¶ 1